

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at **657-622-5231**. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 7/10/2026 10:00 AM

#	Case Name	Tentative
1	Castro vs. Nissan North America, Inc. 30-2025-01471644-CU-BC-CJC	Motion to be Relieved as Counsel of Record The motion of attorney Andrew C. Jung from Quill & Arrow, LLP to be relieved as counsel of record for plaintiff Rosa Vilma Castro is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the court's order as entered. Withdrawal will be effective upon filing of the proof of service of the order on the client. Clerk to give notice.

2	Espinoza Aceves vs. Southern California Edison Company 30-2024-01436382-CU-PO-CJC	Motion to Consolidate Cases Defendant/cross-complainant Southern California Edison Company's (SCE) Motion to Consolidate is DENIED without prejudice. SCE has not complied with California Rules of Court, rule 3.350, subd. (a)(1)(C) as it has not filed notices of the motion to consolidate in each case sought to be consolidated. Clerk to give notice.
3	David Dyrnaes as Trustee for the David Neil Dyrnaes and Mayumi Nagakura Joint Living Trust, Dated August 11, 2010 vs. City of Laguna Beach 30-2025-01519061-CU-WM-CJC	Motion for Leave to File Second Amended Complaint Plaintiff's unopposed motion for leave to file second amended complaint is GRANTED. Amendments to pleadings are liberally allowed in furtherance of justice, and trial has not yet begun. Plaintiff is ORDERED to file and serve the second amended complaint within two court days. Clerk to give notice.
4	Foerster vs. The City of Laguna Niguel 30-2023-01338201-CU-PO-CJC	Motion for Leave to File Third Amended Complaint Plaintiffs' motion for leave to file third amended complaint is GRANTED. Amendments to pleadings are liberally allowed in furtherance of justice, and trial has not yet begun. Plaintiffs are ORDERED to file and serve the third amended complaint within two court days. Trial is CONTINUED to 2/26/2027 at 11:30 AM. The court re-opens discovery for the limited purpose of the newly-added cause of action. The new discovery cutoff is to run with the new trial date. Clerk to give notice.
5	Meriplex Communications, LTD. vs. Rocker Solenoid Company	Motion to Impose a Cost Obligation and Stay Case Defendant Rocker Solenoid Company, d/b/a Rocker Industries' unopposed motion requiring Plaintiff to post an undertaking to secure costs and attorney fees is GRANTED.

	30-2026-01551910-CU-CL-CJC	Defendant has established Plaintiff resides outside the state of California, and there is a reasonable possibility Defendant will obtain judgment in the action. (Code Civ. Proc., § 1030, subds. (a), (b); Stein Decl., ¶ 3, Ex. A; Perry Decl., ¶¶ 4-19.) Defendant's request for an undertaking of \$125,000 is excessive. (Stein Decl., ¶ 6.) The court grants a reduced undertaking of \$50,000. Plaintiff is ORDERED to file an undertaking in the sum of \$50,000 within 30 days. (Civ. Proc. Code, § 1030, subd. (d).) If Plaintiff fails to file the undertaking within the time allowed, upon request by Defendant, the court will dismiss the action. Defendant to give notice.
6	Villasenor vs. American Honda Motor Co., Inc. 30-2024-01430801-CU-BC-CJC	Motion to Reopen Discovery to Compel and Complete Deposition of Plaintiff's Designated Experts or Exclude their Testimony and Impose Sanctions Defendant American Honda Motor Co., Inc.'s (AHM) Motion to Reopen Discovery to Compel and Complete Deposition of Plaintiff's Experts, or alternatively, to Exclude Their Testimony and for Sanctions is DENIED as MOOT. Plaintiff offered a date for deposition for Sims and de-designated the remaining experts only after AHM filed its motion. Plaintiff does not explain why it did not respond to AHM's counsel's attempts to follow up after Plaintiff served its objections or otherwise attempted to meet and confer in good faith regarding Plaintiff's expert witnesses' availability prior to this motion being filed. Accordingly, AHM's request for sanctions in the amount of \$2,524.00 is GRANTED. (Code Civ. Proc., §§ 2023.030, 2023.010.) Plaintiff is ORDERED to pay the sanctions within 20 days. Clerk to give notice.
7	Sultzer vs. Ford Motor Company 30-2025-01464483-CU-BC-CJC	Motion for Judgment on the Pleadings The Motion for Judgment on the Pleadings by Defendant Ford Motor Co. and Tuttle Click Ford is DENIED as to the first through fourth causes of action and GRANTED as to the fifth and sixth causes of action. Plaintiff's First Amended Complaint (FAC) alleges claims for breach of Civil Code section 1793.2 (first-third),

		breach of implied warranty of merchantability (fourth), negligent repair (fifth), and fraudulent inducement concealment (sixth). Defendants contend Plaintiff's first through fourth claims are barred by the statute of repose set out in Code of Civil Procedure section 871.21, subdivision (b). They argue the fifth claim is barred by the economic loss rule. They contend Plaintiff's sixth claim is (1) barred by the three-year statute of limitations, (2) barred by the economic loss rule, and (3) fails to plead sufficient facts demonstrating fraud. Section 871.21 sets out a six-year statute of repose for Song-Beverly Act claims, which Defendants contend is not subject to equitable tolling and can only be tolled as set out in the statute. (Motion, p. 10.) Plaintiff argues section 871.21, which became effective on 7/1/2025, did not retroactively bar this claim filed on 3/4/2025. Defendant responds that the statute's effective date was 1/1/2025 and the Legislature intended to create a statute of repose which extinguished claims more than six years old filed after 1/1/2025 unless the statutory grounds for tolling applied. Neither party cites case law addressing this question of recently-enacted law. In the absence of case law addressing whether equitable tolling applies to claims under section 871.21, Plaintiff has adequately pled equitable tolling of the Song-Beverly Act claims at this stage. (FAC, ¶¶ 43-44.) Regarding the negligent repair claim, Defendants contend it is barred by the economic loss rule, which precludes tort recovery for damages consisting solely of economic loss. Defendant contends this claim arises solely from the warranty contract and Plaintiff's remedy is limited to contract and warranty claims. Again, neither party cites case law addressing this issue in the context of Song-Beverly Act claims. However, Plaintiff does not address these arguments in opposition. Therefore, the motion is granted as to this cause of action. Finally, as to the fraudulent inducement claim, Defendant contends this claim fails because Plaintiff has failed to allege a transactional relationship under <i>Dhital v. Nissan N. Am., Inc.</i>, (2022) 84 Cal.App.5th 828. Plaintiff responds no transactional relationship is required because Ford directly markets its vehicles to consumers. Plaintiff fails to allege he purchased the vehicle directly from Ford's authorized agents and has not shown Ford and Plaintiff were in a direct transactional relationship. Under
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		<i>Dhital</i> Plaintiff has failed to show a transactional relationship giving rise to a duty to disclose. Plaintiff is given 10 days leave to amend. If Plaintiff files and amended pleading, Plaintiff is ORDERED to file a red-line and clean copy. Clerk to give notice.
8	Chandra vs. K1 Speed, Inc. 30-2024-01381781-CU-PO-CJC	Motion to Strike, or Alternatively, Tax K1 Speed-Irvine LLC's Memorandum of Costs Plaintiffs Surina Prilla Chandra and Luke Hilty's Motion to Strike Costs is GRANTED. K1 Speed-Irvine, LLC (K1 Irvine) prevailed on its motion for summary judgment, however, its codefendant, K1 Speed, Inc., remains a defendant. K1 Irvine has not demonstrated costs currently claimed were incurred only by it. (See <i>Fennessy v. DeLeuw-Cather Corp.</i> (1990) 218 Cal.App.3d 1192, 1196.) Plaintiffs to give notice.
9	Pham vs. Alarian 30-2024-01425258-CU-FR-CJC	Motion for Terminating Sanctions Striking Defendants' Answers and Entering Default Plaintiff's unopposed motion for terminating sanctions striking defendants Omar T. Alarian aka Omar Alarian, Karim Rashdan aka Mohamed Kareen Rashdan Abbelaziz Mohamed Rashdan, Alarian Gear, LLC, and Raw Alarian, LLC's answers to plaintiff's complaint and entering their default for failure to comply with order entered 5/4/2026 regarding defendants' responses to plaintiff's discovery and for further monetary sanctions in the amount of \$2460 is GRANTED in part. The court ORDERS the answer of defendant Omar T. Alarian aka Omar Alarian (ROA 33) STRICKEN and enters DEFAULT of this defendant. The court ORDERS the answer of defendant Mohamed Kareem Rashdan Mohamed aka Karim Rashdan (ROA 30) STRICKEN and enters DEFAULT of this defendant. The court DENIES the request for further monetary sanctions. Defendants Alarian Gear, LLC and Raw Alarian, LLC were defaulted on 4/30/2026. All defendants are now in default.

		OSC re dismissal (default prove-up) is scheduled for 10/8/2026 at 1:30 PM. If default papers have not been filed, plaintiff's counsel is ORDERED to file a status report 5 days prior to the hearing. Trial scheduled for 1/29/2027 is VACATED. Clerk to give notice.
10	Nichols vs. Sazegar 30-2026- 01555761-CU- OR-CJC	Motion to Expunge Lis Pendens Defendant Maria Olmos's motion to expunge the lis pendens recorded against real property located at 906 W. Alton Avenue, Santa Ana, CA ("Alton Property") is DENIED. Plaintiff Bond Nichols's Request for Judicial Notice (RJN) of Exhibits 1-10 is GRANTED. "The only substantive grounds upon which a lis pendens can be expunged is if the underlying action does not contain a real property claim (§ 405.31) or the real property claim lacks probable validity (§ 405.32)." (<i>J&A Mash & Barrel, LLC v. Superior Ct. of Fresno Cnty.</i> (2022) 74 Cal.App.5th 1, 22 (<i>J&A</i>); Code Civ. Proc., §§ 405.31, 405.32) " 'Probable validity,' with respect to a real property claim, means that it is more likely than not that the claimant will obtain a judgment against the defendant on the claim." (Code Civ. Proc., § 405.3.) "[S]ection 405.30 explicitly places the burden of proving the probable validity of the real property claim on [] the claimant." (<i>J&A, supra</i>, 74 Cal.App.5th at p. 33.) Here, the Complaint alleges a single cause of action for Fraudulent Transfer pursuant to Civil Code section 3439, et seq. A fraudulent conveyance action seeking avoidance of a transfer affects title to, or the right to possession of real property and is therefore a real property claim for the purposes of the lis pendens statutes. (<i>Kirkeby v. Sup. Ct.</i> (2004) 33 Cal.4th 642, 649.) Plaintiff has also sufficiently established the probable validity of his claim based on the evidence showing the creation of Pollywood Development, LLC ("Pollywood") after Plaintiff filed a complaint against defendant David Sazegar in May 2020, acquisition of the Alton Property in the name of Sazegar's entity Pollywood, the subsequent transfer less than a year later from Pollywood to Olmos, and the recordation of the Interspousal Grant Deed all after Plaintiff initiated the 2020 Action against Sazegar. Further, the acquiring of a \$750,000 loan from Citadel Servicing Corporation dba Acra Lending secured against

		the Alton Property just about two weeks before the 2020 Action was set to begin trial suggests Sazegar and Olmos engaged in gamesmanship to shield the Alton Property from collection. Additionally, Olmos's contention the transfer of the Alton Property to her by Pollywood was to satisfy two promissory notes with a combined principal of \$165,000 is contradicted by the Grant Deed's express representation the transfer was a "bonafide gift" and Pollywood received "nothing." Plaintiff's request for attorney fees against Defendant Maria Olmos in the amount of \$1,740 is GRANTED. (Code Civ. Proc., § 405.38.) Olmos is ORDERED to pay the attorney fees within 30 days. Plaintiff to give notice.
11	Grigsby vs. Steele Canyon Golf Course Corp. 30-2024-01435496-CU-PO-CJC	Demurrer to Third Amended Complaint The Demurrer to Plaintiff's Third Amended Complaint (TAC) by Defendants Steele Canyon Golf Club Corporation d.b.a. Dove Canyon Golf Club and Pacific Golf Management; SJS Tomorrow, LLC; SJD, LLC; Dove Canyon Golf Club, LLC; Lawrence Taylor; Colin Radchenko; Chloe Kim; John Glasoe; and Gabe Ramos is CONTINUED to 8/21/2026. Plaintiff filed and served an untimely opposition to the motion on 7/6/2026, only four days before the hearing. The continuance will permit moving Defendants to file a reply per Code. Clerk to give notice.
12	Southern California Edison Company vs. Powell Constructors Inc. 30-2025-01537140-CU-PO-CJC	Demurrer to Complaint The Demurrer to Complaint by Defendant State of California by and through Department of Transportation is OVERRULED. At the pleading stage, the court must liberally construe the complaint, drawing all reasonable inferences in favor of plaintiffs' asserted claims. (<i>Liapes v. Facebook, Inc.</i> (2023) 95 Cal.App.5th 910, 919.) Under this standard, all causes of action are adequately pled. On the second cause of action, plaintiff has adequately pled defendant's liability for the alleged conduct of its contractor, defendant Powell Constructors Inc., under Government Code section 815.4 and Public Utilities Code section 7952.

		On the third cause of action, plaintiff has adequately pled defendant's liability for the alleged violations of section 4216.4 by its contractor, defendant Powell Constructors Inc., under Government Code section 815.4. On the seventh cause of action, plaintiff has adequately pled creation of a dangerous condition or property by defendant and its contractor. Defendant is ORDERED to file a responsive pleading within 10 days.
13	Thomas vs. City of Rancho Santa Margarita 30-2024-01396694-CU-PO-CJC	Motion for Leave to File First Amended Cross-Complaint Defendant/Cross-complainant, Rancho Santa Margarita Landscape and Recreation Corporation's motion for leave to file first amended cross-complaint is GRANTED. Amendments to pleadings are liberally allowed in furtherance of justice, and trial has not yet begun. Plaintiff is ORDERED to file and serve the first amended cross-complaint within two court days. At the hearing, counsel should be prepared to discuss whether re-opening discovery and a trial continuance is necessary. Clerk to give notice. Motion for Summary Judgment, or in the Alternative, Motion for Summary Adjudication Defendant Mission Landscape Companies, Inc.'s motion for summary judgment, or in the alternative, summary adjudication is GRANTED. Defendant's objections (ROA 350) are SUSTAINED as to No. 4 and otherwise OVERRULED. The court declines to consider Plaintiff's untimely Amended Response to Defendant's Separate Statement (ROA 352). The Amended Response was filed and served on 6/2/2026, only 10 days before the original hearing date and the day <i>after</i> Defendant filed and served its reply papers. (See Code Civ. Proc. § 437c, subd. (b)(2).) Plaintiff's form complaint alleges premises liability and general negligence arising from a trip and fall incident that occurred on 9/30/2023. Plaintiff alleges her foot got caught in a latent hole causing her to fall and sustain injuries while walking over a greenway along Ama Daisy between Avenida de Los Fundadores and Dove in the City

		of Rancho Santa Margarita. Plaintiff alleges this hole was a latent condition that was created by and maintained by defendants over a course of years creating a persistent and dangerous condition. (Complaint, ¶ Prem.L-1.) (Defendant’s Undisputed Material Facts (“UMF”) 1.) In her discovery responses, Plaintiff contends the hole developed after a tree was removed from the Property sometime between 2011 and 2015 when defendant Mission Landscape Companies, Inc. was the contracted landscaper for the premises. (Defendant’s Exh. 6 [Plaintiff’s Responses to Special Rogs.] No. 1.) Mission moves for summary judgment, alternatively, summary adjudication of each cause of action, on the grounds that it did not own, possess, or control the property; did not create the hazardous condition; had no ongoing duty of care; and was not a substantial factor or otherwise caused Plaintiff’s injury. Mission asserts Plaintiff fell in the City of Rancho Santa Margarita in the area around Ama Daisy (“Property”). (Defendant’s Facts 2.) Although the Property is public property, defendant Rancho Santa Margarita Landscape and Recreation Corporation (“SAMLARC”) was responsible for maintaining it. (UMF 3; Defendant’s Exh. 13 [the City’s Responses to Form Rogs.] Nos. 15.1 & 17.1 re RFA No. 7; Exh. 19 [Blair Depo], p. 19:4-12.) SAMLARC is a homeowner’s association. (Defendant’s Exh. 19 [Blair Depo.], p. 76:2.) SAMLARC contracted with Mission to provide landscape maintenance work for the Property between January 2010 and December 31, 2018. (UMF 4-5.) Mission asserts it has not performed any landscape work at the Property since at least June 30, 2018. (UMF 8.) Mission’s contract with SAMLARC explicitly states that no tree work can be done without prior written proposal and approval from SAMLARC. (UMF 6.) Mission’s scope of work was limited to routine maintenance activities and did not include tree removal, excavation, or construction work. (UMF 7.) Mission denies it ever owned, possessed, or controlled the Property and denies removing the tree from the Property. (UMF 9-10.) SAMLARC had contracts with other entities to provide landscaping services for the Property: O’Connell Landscape from April 1, 2016 to January 2019; Sunset Landscape from January 2019 to January 1, 2024; and defendant Andre Landscape, Inc. from January 1, 2024 to the present after it acquired Sunset Landscape. (UMF 11.)
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		Plaintiff contends triable issues of material fact exist as to each element of Plaintiff's claims against Mission. Plaintiff asserts Mission's services under the contract included tree removal and Mission removed between 50 and 100 trees for SAMLARC during the contract period. (Plaintiff's Additional Material Facts ("PAMF") 3-4.) A landscape contractor performing tree removal service for SAMLARC contract could remove a declining or dead tree without obtaining prior approval. (PAMF 10.) The proper post-removal practice is to remove the stump (mechanically or by grinding), backfill the resulting cavity, and replant with seed or sod to leave the area level. (PAMF 10.) Proper stump grinding cuts the stump 12 to 18 inches below ground level and the resulting cavity must be backfilled to avoid leaving "a void in the ground." This is something Mission had done for SAMLARC. (PAMF 12.) When a tree is removed, organic matter left behind in the cavity can decay over time, causing the ground in that area to sink and create a depression. (PAMF 11.) According to Plaintiff, Google Street View imagery of the Property shows two trees standing in the parkway turf in August 2011 and only one tree remaining by April 2015. The relevant time period (August 2011 through April 2015) is entirely within Mission's exclusive tree care contract with SAMLARC. (PAMF 5.) Plaintiff contends that Devin Sanders of Mosaic Consulting, SAMLARC's landscape consultant, and Mission had been monitoring the subject tree as it was declining and eventually died; Mission then removed the tree. (PAMF 7.) Mission's landscape supervisor, Raul Salazar, made the decision to remove the tree. While standing at the location where the tree had been, Salazar admitted to Sanders that he "took it out." (PAMF 8.) Mission's PMQ, Osvaldo Barba, confirmed that Salazar was Mission's landscape manager. (PAMF 9.) Barba has no recollection of any tree at the Property falling on its own or being removed by anyone other than Mission. (PAMF 6.) Neither Mission nor SAMLARC knew of the latent hole prior to the incident. (PAMF 14.) In reply, Mission asserts Plaintiff has no admissible evidence that Mission removed the tree, performed the removal negligently, had notice of the alleged dangerous condition, or that Mission's conduct was a substantial factor in causing her injuries. Rather than produce evidence raising a triable issue of material fact, Plaintiff relies on hearsay, speculation, and impermissible inferential leaps that, even viewed in the light most
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		favorable to Plaintiff, are insufficient to create a conflict in the evidence. Plaintiff's evidence adequately establishes Mission removed the tree. However, Plaintiff failed to meet her burden of demonstrating a triable issue. Plaintiff has not produced evidence showing Mission negligently removed the tree, Mission had notice of the subsequent hole, or Mission's conduct was a substantial factor in causing Plaintiff's injuries. In her opposition, Plaintiff asserts "Mission failed to properly backfill the tree stump cavity. . . ." (Opp. 2:17.) This assertion is unsupported. Plaintiff has not presented any testimony, expert declarations or any other evidence establishing Mission failed to properly backfill the cavity or otherwise deviated from the standard of care. Testimony regarding the general practice for removing a tree and subsequent clean up does not alone establish Mission negligently removed the tree. "No suggestion of negligence arises from the mere happening of an accident." (<i>Brooks v. Eugene Burger Management Corp.</i> (1989) 215 Cal.App.3d 1611, 1620; <i>Buehler v. Alpha Beta Co.</i> (1990) 224 Cal.App.3d 729, 734 (<i>Buehler</i>).) Conjecture that Mission must have acted negligently because a hole developed for an unknown reason at an unknown time after the tree was removed on an unknown date between August 2011 and April 2015 "is mere speculation which is legally insufficient to defeat a summary judgment." (<i>Buehler, supra</i>, 224 Cal.App.3d at p. 734.) In addition, once an independent contractor completes work that is accepted by the owner, the contractor no longer has a duty to inspect, maintain, or warn of conditions that may develop on the property. (<i>Jones v. P.S. Development Co., Inc.</i> (2008) 166 Cal.App.4th 707, 712, disapproved of on other grounds by <i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512.) This is known as the "completed and accepted" doctrine. (<i>Id.</i> at p. 711.) There are three exceptions: (1) the defect was latent and the contractor knew or should have known of it at the time of completion but failed to disclose it; (2) the contractor's work created an imminently dangerous condition that the owner could not have discovered through reasonable inspection; or (3) the contractor engaged in willful misconduct or fraudulent concealment. (Code Civ. Proc., § 337.15; <i>Sanchez v. Swinerton & Walberg Co.</i> (1996) 47 Cal.App.4th 1461, 1467.) Plaintiff seemingly argues the "latent defects" exception should apply. However, Plaintiff
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		produces no evidence Mission knew or should have known of the alleged defect, i.e. the hole, at the time of completion. Plaintiff effectively concedes lack of notice. A defendant cannot breach a duty to warn of or remedy a dangerous condition unless the defendant had actual or constructive notice of the condition. (<i>Ortega v. Kmart Corp.</i> (2001) 26 Cal.4th 1200, 1206 (<i>Ortega</i>).) To establish actual notice of a dangerous condition, there must be evidence the defendant had knowledge of the particular dangerous condition in question. (<i>Restivo v. City of Petaluma</i> (2025) 111 Cal.App.5th 267, 275.) It is insufficient to show the defendant had general knowledge the condition can sometimes occur. (<i>Ibid.</i>) Here, Plaintiff's Additional Material Fact No. 14 asserts that "[n]either Mission nor SAMLARC knew of the latent hole prior to the incident." To establish constructive notice, a plaintiff must show "the dangerous condition existed for at least a sufficient time" that the defendant, "exercising reasonable care," should have discovered and remedied it. (<i>Ortega, supra</i>, 26 Cal.4th at p. 1207.) For an individual to be determined to have constructive notice, they must have, "actual notice of facts or circumstances which are sufficient to put a prudent person on inquiry as to the existence of the fact with respect to which he is charged with constructive notice." (<i>Jones v. Awad</i> (2019) 39 Cal.App.5th 1200, 1209.) A defendant "cannot be charged with constructive notice without a showing of some overt feature surrounding the dangerous condition, which would notify the [defendant] of its existence." (<i>Ibid.</i>) Plaintiff has produced no evidence the hole developed before Mission's contract ended, or there were signs of decay or a hazardous condition before Mission's contract ended. Therefore, Plaintiff cannot establish the hole existed for at least a sufficient time that Mission, exercising reasonable care, should have discovered it. Once Mission's contract ended in 2018, its obligation to inspect the Property ended as well. Finally, Plaintiff has not established causation. Devin Sanders, SAMLARC's landscape consultant, testified Mission's supervisor Raul Salazar told him "he took it out," referring to the subject tree. While Sander's testimony establishes Mission removed the tree at some point, it does not establish how Mission removed the tree, whether the stump was ground down using machinery, whether backfill was performed, or what material was
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		used to backfill. Sanders also testified as to one possible mechanism of soil depression, that organic matter left behind “can decay over years and create a depression.” However, he did not opine decay is the only possible cause of a depression or hole in the soil or whether that scenario occurred here. “[A] plaintiff cannot manufacture a triable issue of fact through use of an expert opinion with self-serving conclusions, devoid of any bias, explanation or reasoning.” (<i>Menges v. Department of Transportation</i> (2020) 59 Cal.App.5th 13, 23 [cleaned up].) Because Mission is still a cross-complainant and a cross-defendant, the court will not enter judgment at this time. Clerk to give notice.
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